

IN THE SUPERIOR COURT OF FULTON COUNTY
STATE OF GEORGIA

ABEBE CAESAR VENTURES, LLC,

Plaintiff,

v.

MEKONNEN ABEBE, ABEBE WESTSIDE
VENTURES LLC, ABEBE AVON
VENTURES LLC, and ABEBE COX
VENTURES LLC,

Defendants.

CIVIL ACTION FILE
NO. 26CV006560

ORDER GRANTING INTERLOCUTORY INJUNCTION

This matter is before the Court on several matters: (1) Plaintiff's Emergency Petition for Interlocutory Injunction; (2) Plaintiff's Emergency Motion for Interim Relief; and (3) Defendants' Motion to Stay and to Compel Arbitration. This Court held a hearing on those matters on Friday, May 22, 2026. For the reasons stated below, this Court **GRANTS** Plaintiff's Emergency Petition for Interlocutory Injunction subject to the terms outlined below, **DENIES AS MOOT** Plaintiff's Emergency Motion for Interim Relief, and **GRANTS IN PART AND DENIES IN PART** Defendants' Motion to Stay and Compel Arbitration.

INTRODUCTION

This dispute involves Abebe Caesar Ventures, LLC ("the Company"), a business formed to pursue real estate development projects in Georgia. The Company alleges that one of its business partners, Mekonnen Abebe, has violated certain contractual and fiduciary duties he owes under the Company's operating agreement. Mr. Abebe denies those allegations and contends that the Company owes him money for past salary and other unreimbursed expenses.

All parties to this litigation agree that the operating agreement contains an arbitration clause allowing any of the parties to that agreement to send this dispute to arbitration. The

Company contends, however, that this Court should award interlocutory relief in the interim to preserve the status quo pending the outcome of any arbitration.

PLAINTIFF'S EMERGENCY MOTION FOR INTERIM RELIEF

Although some portions of Plaintiff's Emergency Motions for Interim Relief have been superseded by recent events, the core remaining issues are as follows: First, Plaintiff contends that Mr. Abebe has failed to transfer title to certain properties he was obligated to transfer to the Company under the operating agreement. Plaintiff contends that his failure to transfer title puts a development project at risk that the Company is currently pursuing with the City of Atlanta, risks ongoing injury because the loans on the property will default unless the Company makes loan servicing payments on property it does not own, and could risk additional irreparable injury if Mr. Abebe transfers to a third party or otherwise loses title to the property. Second, Plaintiff contends that Mr. Abebe has used his ownership of the title to prevent a consultant, Ms. Lisa Benjamin, from pursuing the development project on behalf of all of the properties involved in that development. Plaintiff alleges this confusion as to Ms. Benjamin's authority could cause the project to fail, causing injury to Plaintiffs, Mr. Abebe, and to the Atlanta community.

Where there is an arbitration clause in a contract, this Court has the authority to enter a preliminary injunction to preserve the status quo and to make sure that any relief the parties may be entitled to in the arbitration would not be rendered ineffectual absent provisional relief. O.C.G.A. §§ 9-9-4(e); 9-9-30. In exercising its discretion to grant injunctive relief, a trial court should consider four factors: (1) whether there exists a substantial threat that a moving party will suffer irreparable injury if the injunction is not granted; (2) whether the threatened injury to the moving party outweighs the threat and harm that the injunction may do to the party being enjoined; (3) whether there is a substantial likelihood that the moving party will prevail on the merits at trial; and (4) whether granting the interlocutory injunction will not disserve the public

interest. *Davis V. CP South, LLC*, 297 Ga. 616, 621-22 (2015). None of the four factors alone is dispositive of a trial court's inquiry, and it is not necessary for the moving party to satisfy each element. *SRB Inv. Servs. LLP v. Branch Banking & Trust Co.*, 289 Ga. 1, 5 (2011). Instead, each factor should be considered in an overall balancing of the equities—"whether greater harm might be done by refusing than by granting the injunction." *Zant v. Dick*, 249 Ga. 799, 799 (1982).

Here, this Court finds that these factors warrant a grant of injunctive relief. First, having heard this matter, the Court concludes that there exists a substantial threat of irreparable injury. The Company not holding title to each of the properties poses a tangible risk of injury, including that the 1313 Sylvan Project could be delayed or derailed, that the Company may suffer reputational injury, or that title to the property may ultimately be unobtainable at the conclusion of arbitration. Likewise, the lack of clarity about Ms. Benjamin's authority to pursue the rezoning application threatens to delay or derail that project.

Second, granting injunctive relief will not work any harm to Mr. Abebe, who, like the Company's other investors, stands to benefit if the 1313 Sylvan Project is completed. Notably, Mr. Abebe did not present any basis at oral argument for the position that he is ultimately entitled to retain the property, asserting only that the Company had an unwritten agreement with him to pay off the entirety of the Company's debt prior to transfer. Even assuming such an agreement existed, if Mr. Abebe is entitled to any damages from breach of that agreement, those damages will be available to him through arbitration. In addition, the operating agreement specifically contains protections for Mr. Abebe in the event the Company does make timely payments on any debt to which Mr. Abebe is personally obligated.

Third, this Court finds that there is a substantial likelihood that the Company will prevail in arbitration that Mr. Abebe breached the operating agreement. The operating agreement appears unambiguous that Mr. Abebe is required to transfer title to each of the post-closing

properties. Indeed, as noted, Mr. Abebe did not present any contrary argument at oral argument, but instead took the position he had an agreement with the Company that he did not need to transfer the title until the debt was paid off. This agreement appears to be foreclosed by the language of the operating agreement itself, but even assuming Mr. Abebe is able to prove that oral agreement in arbitration, it would not establish that title should not ultimately reside with the Company. Finally, even if Mr. Abebe had some argument that he is ultimately entitled to the title itself, having the Company hold the title during the pendency of the arbitration best preserves the status quo by avoiding disruptions to the entitlement process.

Finally, this Court finds that if the fourth factor is implicated, it weighs in favor of the Plaintiff. That factor cautions against granting an injunction where it will disserve the public interest. Here, injunctive relief will not harm the public, and potentially provides the public with a benefit by ensuring that the 1313 Sylvan rezoning process is not disrupted.

Accordingly, this Court **GRANTS** Plaintiff's Emergency Petition for Interlocutory Injunction and instructs as follows:

- (1) Defendants shall transfer whatever interest they hold in each of the post-closing properties to the Company within seven business days of the date of this order. Where the transfer of the property could result in a default under a loan agreement or otherwise jeopardize the Company's interest in the property, the parties shall work in good faith to find a suitable method of transfer, such as placing the properties in trust or escrow, as appropriate.
- (2) Within three business days of the date of this order, Defendants shall provide copies of all loan documents associated with any of the post-closing properties not yet transferred to the Company.
- (3) This Court authorizes Lisa Y. Benjamin, CPA of Lexicon Strategies, to serve as the 1313

Sylvan Project's representative before the City of Atlanta for the entitlement process to secure all necessary executive and legislative approvals including the Atlanta City Council. Ms. Benjamin may issue public updates regarding the Project's progress through the legislative process and acknowledge the support and engagement of community stakeholders and public officials. Such communications shall be limited to project-related matters and shall not address the Parties' underlying legal dispute.

This order does not finally resolve any matter that the parties otherwise have the right to bring to arbitration under the terms of the operating agreement.

PLAINTIFF'S EMERGENCY MOTION FOR INTERIM RELIEF

Plaintiff's Emergency Motion for Interim relief asked this Court to grant certain authority to Ms. Benjamin prior to a meeting to be held on May 22, at 1:30 PM. Because that meeting has already occurred, Plaintiff's request is now moot. To the extent Ms. Benjamin still needs authority to speak on behalf of the 1313 Sylvan project, this Court has already granted such relief above. Accordingly, this Court **DENIES AS MOOT** Plaintiff's Emergency Motion for Interim Relief.

DEFENDANT'S MOTION TO STAY AND TO COMPEL ARBITRATION

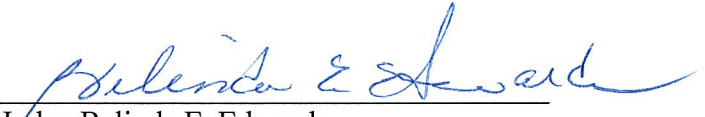
Defendant's Motion to Stay and to Compel Arbitration asks this Court to stay this case pending arbitration, or, in the alternative, to dismiss Plaintiff's complaint. At oral argument, Plaintiff did not dispute that the operating agreement contains an arbitration provision that Mr. Abebe has the right to exercise, and contended only that this Court should award preliminary relief prior to staying the matter. Accordingly, this Court **GRANTS** Defendants' motion to the extent it requests a stay pending arbitration, and otherwise **DENIES** it. Specifically, this Court directs as follows:

- (1) This matter shall remain stayed pending arbitration. This Court retains jurisdiction to

approve the arbitration award, as well as to address ancillary matters, such as requests for interim relief or disputes arising under this order.

- (2) The parties shall file a joint status update with this Court in 90 days stating whether either side has filed a request for arbitration. If no party has submitted this case to arbitration, the parties shall state their positions on whether this case should be dismissed without prejudice.

SO ORDERED, this 29th day of May 2026.



Judge Belinda E. Edwards
Superior Court of Fulton County

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